SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 2712 of 2013 (YEAR: 2013)

CORAM: AFTAB ALAM, RANJANA P. DESAI

Novartis AG
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Patents Act, 1970
Sections:	Section 3(d) Patents Act

JUDICIAL HEADNOTE & SUMMARY

Denied patent for beta crystalline form of Imatinib Mesylate, upholding Section 3(d) as valid safeguard against evergreening of pharmaceutical patents.

RATIO DECIDENDI

The Court held that: Denied patent for beta crystalline form of Imatinib Mesylate, upholding Section 3(d) as valid safeguard against evergreening of pharmaceutical patents. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Novartis AG v. Union of India (Civil Appeal No. 2712 of 2013) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Patents Act, 1970, particularly Section 3(d) Patents Act. Denied patent for beta crystalline form of Imatinib Mesylate, upholding Section 3(d) as valid safeguard against evergreening of pharmaceutical patents.

OPERATIVE ORDER

ORDER: Decided